[Public Land Order 3322]

[Sacramento 076813]

CALIFORNIA

Withdrawal of Douglas City Recreation Site

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to existing valid rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, for the protection of the Douglas City Recreation Site.

MOUNT DIABLO MERIDIAN

T. 32 N., R. 10 W.,
Sec. 12, lot 2 and E½NW¼NW¼.

Containing 59.98 acres.

2. This withdrawal does not alter the applicability of the public land laws governing the use of the lands under lease, license or permit, or governing the disposal of their mineral and vegetative resources other than under the mining laws.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 30, 1964.

[F.R. Doc. 64-1099; Filed, Feb. 4, 1964; 8:45 a.m.]

[Public Land Order 3323]

[Riverside 03927]

CALIFORNIA

Modification of Public Water Reserve No. 114

By virtue of the authority vested in the President by Section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive Order of February 23, 1928, creating Public Water Reserve No. 114, is hereby modified to the extent necessary to permit the granting of a right-of-way under Section 2477, U.S. Revised Statutes (43 U.S.C. 932), over the following-described lands, as delineated on a map on file with the Bureau of Land Management, in Riverside 03927, for construction of a public access road to State Highway No. 111.

SAN BERNARDINO MERIDIAN

T. 9 S., R. 12 E.,
Sec. 28, North 60 feet of S½ lying east of State Highway No. 111.

Containing 3.63 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 30, 1964.

[F.R. Doc. 64-1100; Filed, Feb. 4, 1964; 8:46 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 33—SPORT FISHING

Upper Mississippi River Wildlife and Fish Refuge, Illinois, Iowa, Minnesota and Wisconsin

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.

ILLINOIS, IOWA, MINNESOTA AND WISCONSIN

UPPER MISSISSIPPI RIVER WILDLIFE AND FISH REFUGE

Sport fishing on the Upper Mississippi River Wildlife and Fish Refuge, Illinois, Iowa, Minnesota, and Wisconsin, is permitted only on the areas designated by signs as open to fishing. These open areas, comprising 125,000 acres or 100 percent of the total water area of the refuge, are delineated on a map available at the refuge headquarters and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, 1006 West Lake Street, Minneapolis, Minnesota, 55408. Sport fishing is subject to the following conditions.

(a) Species permitted to be taken: Northern pike, walleyed pike, sauger, largemouth and smallmouth bass and other minor species, and frogs, turtles, crayfish, and clams as permitted by the States' regulations.

(b) Open season: Date of publication in FEDERAL REGISTER through December 31, 1964; subject further to applicable States' seasons.

(c) Daily creel limits:

ILLINOIS

Northern pike—5; walleyed pike and saugers—10 aggregate; largemouth bass and smallmouth bass—10 aggregate; bullfrogs—8; creel limits for other minor species are as prescribed by State regulations.

IOWA

Northern pike—5; walleyed pike and sauger—10 aggregate; largemouth and smallmouth bass—5 aggregate; bullfrogs—12; creel limits for other minor species are as prescribed by State regulations.

MINNESOTA AND WISCONSIN

Northern pike—5; walleyed pike and sauger—6 aggregate, except Wisconsin-Iowa boundary waters 10 aggregate; largemouth and smallmouth bass—5 aggregate; creel limits for other minor species and for inland waters for each state are as prescribed by State regulations.

(d) Methods of fishing:

ILLINOIS

(1) It is unlawful to take fish through the ice by use of more than two poles and lines at any one time or with more than two hooks attached to each line; or from any hole cut in the ice that is larger than 12 inches in diameter.

(2) It is unlawful to use any pole and line, or rod and line device to which more than two (2) hooks have been attached; to use more than 50 hooks in the aggregate; (Trotline may be used under separate license in excess of 50 hooks).

(3) It is unlawful to use any trotline, throw line or similar device, having hooks spaced at intervals less than 24 inches.

(4) It is unlawful to leave unattended any trotline without a tag indicating name and address of owner.

(5) See applicable State regulations for additional details.

IOWA

(1) No person shall at any time take from the waters of the State any fish, except as otherwise provided in this chapter, except with hook, line and bait, nor shall any person use more than two (2) lines with one (1) hook on each line in still fishing or trolling, and in fly fishing not more than one (1) fly may be used on one (1) line and in trolling and bait casting not more than one (1) trolling spoon or artificial bait may be used on one (1) line. No person shall leave such fish line or lines and hooks in the water unattended or take or attempt to take any fish by snagging or to purposely hook them in any other part than in the mouth. One (1) hook shall mean a single, double or treble pointed hook, and all hooks attached as a part of an artificial bait or lure shall be counted as one (1) hook.

(2) It shall be unlawful for any person to use, in the Mississippi River, more than one (1) throw or trotline having more than twenty-five (25) hooks; (one trotline with not to exceed one hundred (100) hooks may be used under separate license).

(3) See applicable State regulations for additional detail.

MINNESOTA

(1) It is unlawful to use more than one (1) line with one (1) hook attached or more than one (1) pole with one (1) line attached in inland waters or to use more than two (2) lines with one (1) hook attached to each or more than two (2) poles with one (1) line attached to each on boundary waters, except that fly fishermen may use two (2) flies on a line in all waters.

(2) It is unlawful to spear game fish at any time.

(3) See applicable State regulations for additional detail.

WISCONSIN

(1) It is unlawful to take, catch or kill fish or fish for fish of any variety with more than two (2) lines or two (2) poles with one (1) line attached to each pole and with one (1) hook or bait to

each line except any fishermen fishing with not more than one (1) line or pole with one (1) line attached thereto may have attached to such line not more than two (2) lures or two (2) hooks or two (2) baits, and in the Wisconsin-Iowa boundary waters of the Mississippi River may use five (5) lines with one (1) bait to each line for fishing through the ice.

(2) See applicable State regulations for additional details.

(e) Other provisions:

(1) The provisions of this special regulation supplement the regulations which govern fishing on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 33.

(2) A Federal permit is not required to enter the public fishing area.

(3) All State laws in connection with fishing are adopted herein and made a part of this regulation unless further restrictions are imposed in this regulation.

(4) The provisions of this special regulation are effective to January 1, 1965.

W. P. SCHAEFER,
Acting Regional Director.

JANUARY 28, 1964.

[F.R. Doc. 64-1096; Filed, Feb. 4, 1964; 8:45 a.m.]

PART 33—SPORT FISHING

Kentucky Woodlands National Wildlife Refuge, Kentucky

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.

KENTUCKY

KENTUCKY WOODLANDS NATIONAL WILDLIFE REFUGE

Sport fishing on the Kentucky Woodlands National Wildlife Refuge, Kentucky, is permitted only on the areas designated by signs as open to fishing. This open area, comprising 7,500 acres or 11 percent of the total area of the refuge, is delineated on a map available at the refuge headquarters and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, 809 Peachtree-Seventh Building, Atlanta 23, Georgia. Sport fishing is subject to the following conditions:

(a) Species permitted to be taken: Black bass, rock bass, sauger, rockfish, crappie, bream, and other minor species permitted by State regulations.

(b) Open season: Kentucky Lake (except Duncan Bay and parts of Smith Bay as designated by markers) all year; Duncan Bay and interior lakes Hematite (the closed part of Smith Bay), Empire and Esselstyne—March 15, 1964 to October 31, 1964. Daylight hours only in the interior lakes.

(c) Daily creel limits: Black bass—10, rock bass—15, sauger—10, rockfish—1, white bass—60, crappie—60, bream—no limit; other minor species as permitted by State regulations.

(d) Methods of fishing:

(1) Pole and line, rod and reel, artificial and live baits permitted.

(2) Row boats, canoes, and other floating devices with motors permitted in Duncan Bay, Smith Bay, and Kentucky Lake. Gasoline powered motors are prohibited on interior lakes. Electric motors permitted.

(3) Bows and arrows may be used for taking non-game fish as prescribed by Kentucky Regulations KFWR-F-62.

(e) Other provisions:

(1) The provisions of this special regulation supplement the regulations which govern fishing on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 33.

(2) Shore fishing permitted on Kentucky Lake but no camping or open fires. Bank fishing in interior lakes only at designated areas.

(3) A Federal permit is not required to enter the public fishing area.

(4) The provisions of this special regulation are effective to November 1, 1964.

WALTER A. GRESH,
Regional Director, Bureau of Sport Fisheries and Wildlife.

[F.R. Doc. 64-1143; Filed, Feb. 4, 1964; 8:51 a.m.]